Number 50 *of* 2021

MARITIME AREA PLANNING ACT 2021

REVISED

Updated to 14 August 2023

This Revised Act is an administrative consolidation of the *Maritime Area Planning Act 2021*. It is prepared by the Law Reform Commission in accordance with its function under the *Law Reform Commission Act 1975* (3/1975) to keep the law under review and to undertake revision and consolidation of statute law.

All Acts up to and including the *Wildlife (Amendment) Act 2023* (25/2023), enacted 20 July 2023, and all statutory instruments up to and including the *Maritime Area Consent (Certain Application Fees) Regulations 2023* (S.I. No. 403 of 2023), made 14 August 2023, were considered in the preparation of this Revised Act.

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An Act to regulate the maritime area, to achieve such regulation by means of a National Marine Planning Framework, maritime area consents for the occupation of the maritime area for the purposes of maritime usages that will be undertaken for undefined or relatively long periods of time (including any such usages which also require development permission under the Planning and Development Act 2000) and licences for the occupation of the maritime area for maritime usages that are minor or that will be undertaken for relatively short periods of time, to establish a body corporate, the Maritime Area Regulatory Authority, to grant, revoke and suspend such consents and licences, take administrative responsibility for foreshore authorisations and generally oversee the enforcement of this Act in so far as it relates to such consents and licences, to amend the Planning and Development Act 2000 to provide for how that Act will treat applications for development permission which must have a maritime area consent before being made and to provide for consequential amendments to other enactments; and to provide for related matters.

[23*rd December,* 2021]

Be it enacted by the Oireachtas as follows:

PART 1

Preliminary and General

Short title, collective citations, construction and commencement

1. (1) This Act may be cited as the Maritime Area Planning Act 2021.

(2) The Foreshore Acts 1933 to 2014 and *Chapters 1* and *3* of *Part 9* may be cited together as the Foreshore Acts 1933 to 2021 and shall be construed together as one.

(3) The Electricity Regulation Acts 1999 to 2002 and *Chapter 4* of *Part 9* may be cited together as the Electricity Regulation Acts 1999 to 2021 and shall be construed together as one.

(4) The Planning and Development Acts 2000 to 2020, *Part 8* and *Schedules 10* to *12* may be cited together as the Planning and Development Acts 2000 to 2021 and shall be construed together as one.

(5) Subject to *subsection (6)*, this Act shall come into operation on such day or days as the Minister may by order or orders appoint either generally or

(3) A public body may, at any time after the bringing of an application for leave to apply for judicial review of any decision or other act to which *subsection (2)* applies and which relates to a matter for the time being before the public body, apply to the High Court to stay the proceedings pending the making of a decision by the public body in relation to the matter concerned.

(4) On the making of such an application, the High Court may, where it considers that the matter before the public body is within the jurisdiction of the public body, make an order staying the proceedings concerned on such terms as it thinks fit.

(5) Subject to *subsection (6)*, an application for leave to apply for judicial review under Order 84 in respect of a decision or other act to which *subsection (2)* applies shall be made within the period of eight weeks beginning on the date on which—

(a) the publication requirement of *section 16(1)*, *17(2)(a)* or *(b)*, *17(3)(a)* or *(b)*, or *18(1)* is complied with in respect of the public body's decision,

(b) the publication requirement of *section 26(1)(a)* or *(b)*, is complied with in respect of the public body's decision,

(c) the publication requirement of *section 29(1)* is complied with, or

(d) the public body does the act concerned,

as appropriate.

(6) The High Court may extend the period provided for in *subsection (5)* within which an application for leave referred to in that subsection may be made but shall only do so if it is satisfied that—

(a) there is good and sufficient reason for doing so, and

(b) the circumstances that resulted in the failure to make the application for leave within the period so provided were outside the control of the applicant for the extension.

(7) References in this section to Order 84 shall be construed as including references to the Order as amended or replaced (with or without modification) by rules of court.**]**

F6**[Provisions supplementary to section 33A**

33B.—(1) In this section—

"Court", where used without qualification, means the High Court (but this definition shall not be construed as meaning that *subsections (2)* to *(6)* and *(9)* do not extend to and govern the exercise by the Court of Appeal of jurisdiction on any appeal that may be made);

"section 33A leave" means leave to apply for judicial review under Order 84 in respect of a decision or other act to which *section 33A(2)* applies.

(2) (a) An application for section 33A leave shall be made by motion ex parte and shall be grounded in the manner specified in Order 84 in respect of an ex parte motion for leave.

(b) The Court hearing the ex parte application for leave may decide, having regard to the issues arising, the likely impact of the proceedings on the respondent or another party, or for other good and sufficient reason, that the application for leave should be conducted on an inter